

Prop. 5 Backers Get Free TV, Radio Time

The proponents of Proposition 5, who have been heavily outspent in the ad campaign, have secured free air time from nine California television stations and 17 radio stations to present their side of the argument over banning smoking in many public places.

Proposition 5 co-author Paul Loveday, accused opponents of the anti-smoking initiative—mainly the nation's five largest tobacco companies—of already having set a record for spending in a California election campaign that still has three weeks to run.

The no-on-5 forces, Californians for Common Sense, have collected more than \$3 million of an anticipated \$5 million war chest to defeat the measure.

Proposition 5 backers have raised about \$300,000.

As to the free time offered by all stations, Loveday said the total amount thus far has exceeded \$100,000. He called that "less than five percent of what the tobacco industry will pour into California in its radio and TV campaign."

The stations offered the free time after Proposition 5 backers sent them letters advising them of the tobacco industry financial role in the campaign and its implications on the Federal Communications fairness doctrine—which provides that television and radio stations must air all sides of a controversial public issue.

FCC regulations have been interpreted as requiring radio and TV stations not only to make paid advertising time available to all sides in controversial public issues, but to go beyond that in insuring that even those who cannot pay for ads are given "fair" exposure on the air.

Nowhere, however, does the fairness doctrine specifically direct stations to provide free advertisements for candidates or initiative campaigns that cannot afford to pay for the time.

Loveday also announced yesterday the filing of a complaint with the FCC against at least one television station that didn't provide free advertising time.

The complaint charges Los Angeles station KTTV with violating the fairness doctrine.

The complaint against the Los Angeles station declares that the proponents of Proposition 5 have received no advertising time on KTTV, while the

opposition has broadcast at least \$20,000 worth of commercials.

The station will air more than 120 separate spot ads before the campaign is over, according to the complaint.

A spokesman for KTTV in Los Angeles yesterday said station manager Charles Young would have no comment on the complaint to the FCC or on his station's coverage of Proposition 5.

Arthur J. Shattuck, an attorney for the Yes-On-5 group, refused to say yesterday which other stations, if any besides KTTV would be targets of complaints to the FCC. The commission was asked to order the Los Angeles station to correct its "unbalanced coverage" before November 7, election day.

After receiving letters from the Proposition 5 campaign advising them of the fairness doctrine, the other television stations have voluntarily offered the free time.

KRON in San Francisco; KMFB and KCST in San Diego; KHL in Los Angeles; KCRA in Sacramento; KMST in Monterey; KFSN in Fresno; KHSL in Chico and KLOC in Modesto.

Among the radio stations that offered free time were KFOG and KQTT in San Francisco.

Jack McDowell, campaign manager of Californians for Common Sense, stressed yesterday that the decisions by the stations to supply free ad spots were strictly voluntary.

"This is an individual decision by management," he said. "It's our understanding that the fairness doctrine does not require any free commercials. It simply requires fair exposure in total coverage of an issue."

McDowell accused the Proposition 5 proponents of "pleading poverty to get free air time while spending thousands on direct-mail ads."

The previous spending record for an initiative campaign was the \$2.8 million spent by opponents of Proposition 13, the 1978 anti-taxer development initiative. By way of comparison, both sides in this year's highly controversial campaign over Proposition 13 spent about \$1.5 million each.

Yesterday, Loveday also announced an intensive pro-5 media campaign featuring celebrities Carol Burnett, Charlton Heston and Edward Asner.



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